

(Name of court)

at

Court office address

**Form 34K: Certificate of Clerk  
(Adoption)**

**Applicant(s)** (The first letter of the applicant's surname may be used)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

**Respondent(s)** (If there is a respondent, the first letter of the surname may be used)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

If the appropriate box on the left cannot be checked, check the box on the right margin and describe the deficiency by the box.  
The clerk of the court certifies as follows:

**1. MATERIAL COMMON TO ALL ADOPTION CASES**

**Deficiency**

- |     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |      |                                      |
|-----|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|--------------------------------------|
| (a) | <input type="checkbox"/> An application for adoption (Form 8D in <i>Family Law Rules</i> ) has been filed.                                                                                                                                                                                                                                                                                                                                                                                                                                                           | 1(a) | <input type="checkbox"/>             |
| (b) | <input type="checkbox"/> A certified copy of the statement of live birth has been filed (Form 2 in regulation under <i>Vital Statistics Act</i> ).<br><input type="checkbox"/> A certified copy of a change of birth registration has been filed (Form 2 in regulation under <i>Vital Statistics Act</i> ).<br><input type="checkbox"/> Equivalent proof of details of birth has been filed.                                                                                                                                                                         | 1(b) | <input type="checkbox"/><br><br><br> |
| (c) | <input type="checkbox"/> The person to be adopted is 7 years of age or over and has filed a consent to adoption (Form 34 in <i>Family Law Rules</i> ).<br><input type="checkbox"/> A court order dispensing with the consent of the person to be adopted has been filed.                                                                                                                                                                                                                                                                                             | 1(c) | <input type="checkbox"/><br>         |
| (d) | <input type="checkbox"/> An affidavit of parentage has been filed (Form 34A in <i>Family Law Rules</i> ) or if it is an adult adoption, an affidavit of service on any parent.<br><input type="checkbox"/> Other evidence of who is or is not a "parent" has been filed.                                                                                                                                                                                                                                                                                             | 1(d) | <input type="checkbox"/><br>         |
| (e) | <input type="checkbox"/> A report on the child's adjustment in the applicant's home (not required for adult adoption):<br><div style="margin-left: 20px;"> <input type="checkbox"/> is required by the Act (where a child had been "placed" for adoption through a licensee, a society or otherwise). That report has been filed.<br/> <input type="checkbox"/> had been ordered by the court in the case of an adoption by a stepparent or relative. That report has been filed.<br/> <input type="checkbox"/> has not been required in this case.           </div> | 1(e) | <input type="checkbox"/><br>         |
| (f) | <input type="checkbox"/> The applicant has a 'spouse' who is not a 'parent' and who has not joined in the application. That spouse's consent (Form 34B in <i>Family Law Rules</i> ) has been filed.<br><input type="checkbox"/> A court order dispensing with the spouse's consent has been filed, together with, <div style="margin-left: 20px;">             (i) <input type="checkbox"/> proof of service of this order.<br/>             (ii) <input type="checkbox"/> a certified copy of an order dispensing with service.           </div>                    | 1(f) | <input type="checkbox"/><br>         |

- |     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | <b>Deficiency</b>             |
|-----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|
| (g) | <input type="checkbox"/> The Director's or local director's statement (with recommendations) on the adoption (Form 34C in <i>Family Law Rules</i> ): <div style="margin-left: 20px;"> <input type="checkbox"/> is required by the Act (where a child had been "placed" for adoption through a licensee, a society or otherwise). That statement has been filed.               <input type="checkbox"/> had been ordered by the court in the case of an adoption by a stepparent or relative. That statement has been filed.               <input type="checkbox"/> has not been required in this case.             </div> | 1(g) <input type="checkbox"/> |
| (h) | <input type="checkbox"/> The affidavit of each adoption applicant (Form 34D in <i>Family Law Rules</i> ) has been filed.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | 1(h) <input type="checkbox"/> |
| (i) | <input type="checkbox"/> A draft adoption order (Form 25C in <i>Family Law Rules</i> ) has been filed.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 1(i) <input type="checkbox"/> |
| (j) | <input type="checkbox"/> This is a joint application by spouses and <div style="margin-left: 20px;">             (i) <input type="checkbox"/> a certificate of the applicants' marriage had been filed.<br/>             (ii) <input type="checkbox"/> other proof of the applicants' spousal status has been filed.           </div>                                                                                                                                                                                                                                                                                     | 1(j) <input type="checkbox"/> |
| (k) | <input type="checkbox"/> Other joint application ( <i>Specify.</i> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 1(k) <input type="checkbox"/> |
| (l) | <input type="checkbox"/> ( <i>Other. Specify.</i> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 1(l) <input type="checkbox"/> |

## 2. ADDITIONAL MATERIAL FOR ADOPTIONS OF CHILDREN IN EXTENDED SOCIETY CARE

- |     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                               |
|-----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|
| (a) | <input type="checkbox"/> The Director's consent to adoption (Form 34E in <i>Family Law Rules</i> ) has been filed.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 2(a) <input type="checkbox"/> |
| (b) | <input type="checkbox"/> There is no outstanding access order made under the <i>Child, Youth and Family Services Act, 2017</i> to this child in extended society care, and an affidavit (Form 34G.1) has been filed confirming that fact.<br><br><input type="checkbox"/> A certified copy of an order terminating access made under the <i>Child, Youth and Family Services Act, 2017</i> to this child in extended society care has been filed, together with, <div style="margin-left: 20px;">             (i) <input type="checkbox"/> proof of service of this order.<br/>             (ii) <input type="checkbox"/> a certified copy of an order dispensing with service.           </div>                                                                                                                                                                          | 2(b) <input type="checkbox"/> |
| (c) | <input type="checkbox"/> The outstanding access order made under the <i>Child, Youth and Family Services Act, 2017</i> was terminated when the child was placed for adoption and the following document(s) were filed: <div style="margin-left: 20px;"> <input type="checkbox"/> A copy of each access order made under Part V of the <i>Child, Youth and Family Services Act, 2017</i>.<br/> <input type="checkbox"/> A copy of every notice of intention to place for adoption.<br/> <input type="checkbox"/> Proof of service of notice of intention to place for adoption.<br/> <input type="checkbox"/> A copy of the order permitting an alternative method of service.<br/> <input type="checkbox"/> Proof of service in accordance with order for alternative service.<br/> <input type="checkbox"/> A copy of the order dispensing with notice.           </div> | 2(c) <input type="checkbox"/> |
| (d) | <input type="checkbox"/> The child is a First Nations, Inuk, or Métis person and the following document(s) were filed: <div style="margin-left: 20px;"> <input type="checkbox"/> A copy of every notice of intention to place for adoption in accordance with section 197(2) of the <i>Child, Youth and Family Services Act, 2017</i>, unless the child's First Nations, Inuk or Métis community was not listed at the time the child was placed for adoption, or the child was placed under the old Act.           </div>                                                                                                                                                                                                                                                                                                                                                | 2(d) <input type="checkbox"/> |

- ☐ Proof of service of notice in accordance with s. 197(4)(a) of the *Child, Youth and Family Services Act, 2017*.
- ☐ A copy of the order permitting an alternative method of service pursuant to s. 197(4)(b) of the *Child, Youth and Family Services Act, 2017*.

## Deficiency

- ☐ Proof of service in accordance with order for alternative service.
- ☐ A copy of the order dispensing with notice pursuant to s. 197(4)(b) of the *Child, Youth and Family Services Act, 2017*.
- (e) ☐ A certified copy of the extended society care order has been filed together with, 2(e) ☐
- (i) ☐ proof of service of this order.
- (ii) ☐ a certified copy of an order dispensing with service.
- (f) ☐ A copy of any openness order has been filed (if applicable). 2(f) ☐
- (g) ☐ An affidavit from a society employee (Form 34G.1) has been filed, stating that no appeal of the orders mentioned in clause (b) above had been launched or that the appeal period had expired. 2(g) ☐
- (h) ☐ The child is a First Nations, Inuk, or Métis person, and the following document(s) were filed: 2(h) ☐
- ☐ a copy of the notice provided by a society setting out the society's intention to begin planning for adoption of the child.
- ☐ proof of service of the notice(s).
- (i) ☐ An affidavit (Form 34G.1 in *Family Law Rules*) of an authorized employee of the children's aid society has been filed. 2(i) ☐
- (j) ☐ (Other. Specify.) 2(j) ☐

### 3. ADDITIONAL MATERIAL FOR ADOPTIONS OF CHILDREN NOT IN EXTENDED SOCIETY CARE PLACED FOR ADOPTION BY LICENSEE OR SOCIETY

- (a) ☐ The child has been placed by a children's aid society. 3(a) ☐
- ☐ The child has been placed by a licensee, and a copy of the licensee's licence to make the placement at the time of placing the child for adoption has been filed.
- (b) ☐ An affidavit (Form 34G in *Family Law Rules*) of the licensee or of an authorized employee of the children's aid society has been filed. 3(b) ☐
- (c) ☐ The person filing the affidavit knows of no parenting order involving the child. 3(c) ☐
- ☐ Certified copy/copies of the parenting order(s) involving the child has/have been filed together with,
- (i) ☐ proof of service of this order.
- (ii) ☐ a certified copy of an order dispensing with service.
- (d) ☐ A consent (Form 34F in *Family Law Rules*) to adoption from the birth parent has been filed. 3(d) ☐
- ☐ The consent, which was signed by the birth parent when she was under 18 years of age, is accompanied by a certificate of the Children's Lawyer (Form 34J in *Family Law Rules*).
- ☐ The child's birth parent has, outside Ontario, signed a form of consent that is not an Ontario consent form and that is accompanied by:
- (i) ☐ a certified translation of the document into English/French.

- (ii) ☐ evidence that the foreign consent complies with the laws of the place where the birth parent made it.
- ☐ A certified copy of an order dispensing with the birth parent's consent has been filed, together with proof of service of the order.

## Deficiency

- (e) ☐ The child is presumed to have a “parent” as defined under paragraph 2 of section 180 of the *Child, Youth and Family Services Act, 2017* and the following document(s) have been filed: 3(e) ☐
- ☐ A consent (Form 34F in *Family Law Rules*) to adoption from the “parent.”
  - ☐ The consent, which was signed by the “parent” when he was under 18 years of age, is accompanied by a certificate of the Children’s Lawyer (Form 34J in *Family Law Rules*).
  - ☐ The “parent” has, outside Ontario, signed a form of consent that is not an Ontario consent form and that is accompanied by:
    - (i) ☐ a certified translation of the document into English/French.
    - (ii) ☐ evidence that the foreign consent complies with the laws of the place where the “parent” made it.
  - ☐ A certified copy of an order dispensing with the “parent’s” consent, together with proof of service of the order.
  - ☐ The court has ruled that, on a balance of probabilities, the person does not have the status of “parent” under paragraph 2 of section 180 of the *Child, Youth and Family Services Act, 2017*.
- (f) ☐ A consent (Form 34F in *Family Law Rules*) to adoption from any other person who is a “parent” under Part VIII of the *Child, Youth and Family Services Act, 2017* has been filed. 3(f) ☐
- ☐ The consent, which was signed by the other “parent” when he/she was under 18 years of age, is accompanied by a certificate of the Children’s Lawyer (Form 34J in *Family Law Rules*).
  - ☐ This other “parent” has, outside Ontario, signed a form of consent that is not an Ontario consent form and that is accompanied by:
    - (i) ☐ a certified translation of the document into English/French.
    - (ii) ☐ evidence that the foreign consent complies with the laws of the place where the other “parent” made it.
  - ☐ A certified copy of an order dispensing with the other “parent’s” consent has been filed, together with proof of service of the order.
- (g) ☐ A consent (Form 34F in *Family Law Rules*) to adoption from any other person who is a “parent” under Part VIII of the *Child, Youth and Family Services Act, 2017* has been filed. 3(g) ☐
- ☐ The consent, which was signed by the other “parent” when he/she was under 18 years of age, is accompanied by a certificate of the Children’s Lawyer (Form 34J in *Family Law Rules*).
  - ☐ This other “parent” has, outside Ontario, signed a form of consent that is not an Ontario consent form and that is accompanied by:
    - (i) ☐ a certified translation of the document into English/French.
    - (ii) ☐ evidence that the foreign consent complies with the laws of the place where the other “parent” made it.
  - ☐ A certified copy of an order dispensing with the other “parent’s” consent has been filed, together with proof of service of the order.
- (h) ☐ The child is a First Nations, Inuk, or Métis person, and the following document(s) were filed: 3(h) ☐
- ☐ a copy of the notice provided by a society setting out the society’s intention to begin planning for adoption of the child.
  - ☐ a copy of the notice provided by a licensee in accordance with regulations made under the Act setting out the licensee’s intention to place the child for adoption.

## Deficiency

☐ proof of service of the notice(s).

(i) ☐ (Other. Specify.)

3(j) ☐

**4. ADDITIONAL MATERIAL FOR ADOPTION OF CHILD RESIDENT IN CANADA BEFORE ADOPTION BY FAMILY OR WHERE CHILD HAS RESIDED WITH APPLICANT FOR AT LEAST TWO YEARS**

(a) ☐ A consent (Form 34F in *Family Law Rules*) to adoption from the birth parent has been filed. 4(b) ☐

☐ The consent, which was signed by the birth parent when she was under 18 years of age, is accompanied by a certificate of the Children's Lawyer (Form 34J in *Family Law Rules*).

☐ The child's birth parent has, outside Ontario, signed a form of consent that is not an Ontario consent form and that is accompanied by:

(i) ☐ a certified translation of the document into English/French.

(ii) ☐ evidence that the foreign consent complies with the laws of the place where the birth parent made it.

☐ A certified copy of an order dispensing with the birth parent's consent has been filed, together with proof of service of the order.

(b) ☐ The child is presumed to have a "parent" as defined under paragraph 2 of section 180 of the *Child, Youth and Family Services Act, 2017* and the following document(s) have been filed: 4(b) ☐

☐ A consent (Form 34F in *Family Law Rules*) to adoption from the "parent."

☐ The consent, which was signed by the "parent" when he was under 18 years of age, is accompanied by a certificate of the Children's Lawyer (Form 34J in *Family Law Rules*).

☐ The "parent" has, outside Ontario, signed a form of consent that is not an Ontario consent form and that is accompanied by:

(i) ☐ a certified translation of the document into English/French.

(ii) ☐ evidence that the foreign consent complies with the laws of the place where the "parent" made it.

☐ A certified copy of an order dispensing with the "parent's" consent has been filed, together with proof of service of the order.

☐ The court has ruled that, on a balance of probabilities, the person does not have the status of "parent" under paragraph 2 of section 180 of the *Child, Youth and Family Services Act, 2017*.

(c) ☐ A consent (Form 34F in *Family Law Rules*) to adoption from any other person who is a "parent" under Part VIII of the *Child, Youth and Family Services Act, 2017* has been filed. 4(c) ☐

☐ The consent, which was signed by the other "parent" when he/she was under 18 years of age, is accompanied by a certificate of the Children's Lawyer (Form 34J in *Family Law Rules*).

☐ This other "parent" has, outside Ontario, signed a form of consent that is not an Ontario consent and that is accompanied by:

(i) ☐ a certified translation of the document into English/French.

(ii) ☐ evidence that the foreign consent complies with the laws of the place where the other "parent" made it.

## Deficiency

- ☐ A certified copy of an order dispensing with the other "parent's" consent has been filed, together with proof of service of the order.
- (d) ☐ A consent (Form 34F in *Family Law Rules*) to adoption from any other person who is a "parent" under Part VIII of the *Child, Youth and Family Services Act, 2017* has been filed. 4(d) ☐
- ☐ The consent, which was signed by the other "parent" when he/she was under 18 years of age, is accompanied by a certificate of the Children's Lawyer (Form 34J in *Family Law Rules*).
- ☐ This other "parent" has, outside Ontario, signed a form of consent that is not an Ontario consent and that is accompanied by:
- (i) ☐ a certified translation of the document into English/French.
- (ii) ☐ evidence that the foreign consent complies with the laws of the place where the other "parent" made it.
- ☐ A certified copy of an order dispensing with the other "parent's" consent has been filed, together with proof of service of the order.
- (e) ☐ The affidavit (Form 34H in *Family Law Rules*) of each adoption applicant to a family adoption has been filed and that is accompanied by: 4(e) ☐
- ☐ a broad record check of the person giving the affidavit, received not more than 6 months before the application is started.
- ☐ evidence that the person giving the affidavit has requested a broad record check.
- (f) ☐ This is a stepparent adoption and the spouse of the adopting stepparent has filed a consent (Form 34I in *Family Law Rules*). 4(f) ☐
- (g) ☐ An affidavit (Form 34H.1) has been filed by each person who resides with an applicant that is not a "parent" as set out in section 4 of the *Children's Law Reform Act*, that is also not a "parent" under that Act, and that is accompanied by: 4(g) ☐
- ☐ a broad record check of the person giving the affidavit, received not more than 6 months before the application is started.
- ☐ evidence that the person giving the affidavit has requested a broad record check.
- (h) ☐ (Other. Specify.) 4(h) ☐

Date of Signature

Signature of clerk of the court